

25AVCV00849 25AVCV00849

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Case Number: 25AVCV00849 Hearing Date: September 1, 2026 Dept: A14

SUPERIOR COURT OF THE STATE OF CALIFORNIA

COUNTY OF LOS ANGELES – NORTH DISTRICT

BARBARA CARSON, individually and as Trustee of the Carson Family Trust,

Plaintiff,

v.

HARRY DEWITT CLEELANT, III,

Defendant.

Case Number 25AVCV00849

[TENTATIVE]

RULING ON MOTION

Date of Hearing: September 1, 2026

Dept. A-14

Judge William H. Forman

I. Background

This is a fraud case involving transactions for real property. Plaintiff Barbara Carson (Plaintiff), individually and as Trustee of the Carson Family Trust (Trust) moves to compel further responses from Defendant Harry Dewitt Cleelant, III (Defendant) to Plaintiff's Form Interrogatories.

On July 8, 2025, Plaintiff filed a complaint against Defendant, asserting three causes of action for (1) Fraud, (2) Quiet Title, and (3) Nuisance.

On November 6, 2025, Plaintiff filed a first amended complaint (FAC).

Plaintiff alleges that at all pertinent times, Plaintiff served as Trustee of the Trust, and the two acre parcel located at 32137 Angeles Forest Highway, Palmdale, CA 93550 (Parcel 1) was titled and included as an asset of the Trust. (FAC, ¶ 1.) Plaintiff asserts that she and the Trust also owned two other parcels on Angeles Forst Highway, a 19-acre parcel located at 32115 Angeles Forest Highway, Palmdale, CA (Parcel 2) and a five acre parcel (Parcel 3) located adjacent to Parcel 1. (FAC, ¶ 2.) Plaintiff alleges that Defendant defrauded her out of Parcel 2 and Parcel 3 by convincing her, after approximately two to three years of isolation, to sign the deeds to the Parcels to him before his imprisonment under assurances that he would not record the deeds. (FAC, ¶ 8.) While Defendant was imprisoned, Plaintiff asserts she learned for the first time of his extensive criminal history, and learned only after his release that he recorded the deeds to both Parcels. (FAC, ¶ 9.)

On May 26, 2026, Plaintiff filed the present motion to compel. The motion is unopposed.

On June 26, 2026, Defendant filed an answer and a cross-complaint against Plaintiff individually and as Trustee, asserting seven causes of action for (1) quiet title, (2) declaratory relief, (3) quantum meruit, (4) unjust enrichment, (5) conversion, (6) trespass to chattels, and (7) accounting.

On August 8, 2026, Plaintiff answered the cross-complaint.

II. Preliminary Procedural Issues

Meet and Confer – A motion to compel further responses must be accompanied by a meet and confer declaration showing “a reasonable and good faith attempt at an informal resolution of each issue presented by the motion.” (Code Civ. Proc., §§ 2016.040, 2030.300, subd. (b)(1), 2031.310, subd. (b)(2).)

Counsel for Plaintiff Nancy Kelso states that she attempted to meet and confer with Defendant on a number of occasions but the issues remain unresolved. (Kelso Decl., ¶¶ 2-3.) The Court finds this requirement satisfied.

III. Legal Standard

Standard for Motions to Compel Further Discovery Responses - Interrogatories – In responding to a set of interrogatories, a party must provide one of the following: (1) an answer “containing the information sought to be discovered”; (2) “an exercise of the party's option to produce writings”; or (3) an objection to the particular interrogatory. (Code Civ. Proc., § 2030.210, subd. (a).) Each answer to an interrogatory “shall be as complete and straightforward as the information reasonably available to the responding party permits.” (Code Civ. Proc. § 2030.220, subd. (a).) If any objections are made, “the specific ground for the objection shall be set forth clearly in the response.” (Code Civ. Proc., § 2030.240, subd. (b).)

Upon receipt of responses to interrogatories, the propounding party may move for an order compelling further responses if they deem the responses to be “evasive or incomplete” or if “[a]n objection to an interrogatory is without merit or too general.” (Code Civ. Proc., §§ 2030.300(a)(1), (a)(3).) A motion to compel further responses to interrogatories must be accompanied by a meet and confer declaration showing “a reasonable and good faith attempt at an informal resolution of each issue presented by the motion.” (Code Civ. Proc., §§ 2016.040, 2030.300, subd. (b)(1).) The motion must also be accompanied by a separate statement containing the text of the interrogatories at issue, the text of each response at issue, and a statement of the reasons why a further response is required, though the court may permit a party to submit “a concise outline of the discovery request and each response in dispute” in lieu of a separate statement. (Code Civ. Proc., § 2030.300, subd. (b)(2); Cal. Rules of Court, rule 3.1345.)

A motion to compel further response lies where the party to whom the interrogatories were directed gave responses deemed improper by the propounding party; e.g., objections, or evasive or incomplete answers. (Code Civ. Proc., § 2030.300.) Unlike a motion to compel further responses to a request for production, there is no “good cause” requirement applicable to a motion to compel further responses to interrogatories. “The ruling usually is based on consideration of the following factors: the relationship of the information sought to the issues framed in the pleadings; the likelihood that disclosure will be of practical benefit to the party seeking discovery; the burden or expense likely to be encountered by the responding party in furnishing the information sought.” (Weil, et al., Cal. Prac. Guide, Civil Procedure Before Trial, Ch. 8F-7, ¶ 8:1181; see also *Columbia Broadcasting System, Inc v. Superior Court* (1968) 263 Cal.App.2d 12, 18–19 [“[I]n deciding a motion under [former] section 2030 the trial court must, of necessity, consider not only the stated objections to the interrogatories, but also the interrogatories themselves, as well as the pleadings, and the contentions of the interrogating party as to the purpose and validity of the interrogatories. If the interrogatories stray too far and seek information which cannot reasonably serve the acknowledged purposes of pretrial discovery, the motion should be denied.”].) If a timely motion to compel has been filed, the burden is on the responding party to justify any objection or failure to fully answer. (*Coy v. Superior Court of Contra Costa County* (1962) 58 Cal.2d 210, 220–221.)

If a party fails to serve a timely response to interrogatories, the party waives the right to exercise the option to produce writings under Section 2030.230 and waives any objection to the demand, including objections based on privilege or work product. (Code Civ. Proc., § 2030.290, subd. (a).) The Court may relieve a party of this waiver only if the party has subsequently served a substantially code-compliant response and the party’s failure to serve a timely response was the result of mistake, inadvertence, or excusable neglect. (Code Civ. Proc., § 2030.290, subd. (a)(1)-(2).)

IV. Discussion

Application – Plaintiff moves to compel further responses to Form Interrogatories from Defendant without objection pursuant to Code of Civil Procedure section 2030.290 on the grounds that Defendant failed to timely respond to interrogatories, served insufficient untimely responses, served insufficient supplemental responses, and failed to meet and confer. (Motion, p. 3:2-18.)

Defendant was served with Form Interrogatories on November 11, 2025 by mail to his address of record. (Kelso Decl., ¶ 2, Ex. 1.) Defendant did not respond, and on February 11, 2026, Defendant emailed Plaintiff’s counsel requesting that all discovery be served electronically, after which Plaintiff’s counsel electronically served the Form Interrogatories on February 24th. (Kelso Decl., ¶ 2, Ex. 2.) Defendant did not serve responses or request an extension, and Plaintiff’s counsel emailed Defendant on April 2, 2026 requesting responses without objection. (Kelso Decl., ¶ 2, Ex. 3.) Defendant served responses on April 8, 2026. (Kelso Decl., ¶ 2, Ex. 4.) On May 4th, Plaintiff’s counsel emailed Defendant outlining the deficiencies in his responses and requested supplemental responses and availability to meet and confer. (Kelso Decl., ¶ 2, Ex. 5.) Counsel sent follow up emails on May 11th and 19th. (Kelso Decl., ¶ 2, Ex. 6-7.) Defendant ultimately provided supplemental responses on May 22, 2026. (Kelso Decl., ¶ 3, Ex. 8.) Counsel again attempted to meet and confer with Defendant and sent an email regarding the deficient responses on May 23 and left a voicemail on May 25, 2026. (Kelso Decl., ¶ 3, Ex. 9.)

At issue are Form Interrogatory Nos. 2.3, 2.4, 2.5, 2.7, and 2.8. (Plaintiff's Separate Statement.) On review of Defendant's supplemental responses, Defendant has failed to respond to No. 2.3, provided incomplete and evasive responses to Nos. 2.4, 2.5, 2.7, and 2.8, and improperly objected to Nos. 2.4, 2.5, 2.7, and 2.8. All objections served by Defendant are without merit and all have been waived for his failure to serve timely responses. (Code Civ. Proc., § 2030.290, subd. (a).)

Accordingly, Plaintiff's motion is GRANTED.

Sanctions – "The court may impose a monetary sanction ordering that one engaging in the misuse of the discovery process, or any attorney advising that conduct, or both pay the reasonable expenses, including attorney's fees, incurred by anyone as a result of that conduct. The court may also impose this sanction on one unsuccessfully asserting that another has engaged in the misuse of the discovery process, or on any attorney who advised that assertion, or on both." (Code Civ. Proc., § 2023.030, subd. (a).)

Plaintiff's counsel requests sanctions in the amount of \$2,560.00 for approximately 8.0 hours expended in meet and confer efforts, reviewing Defendant's responses, and preparing the motion and separate statement at \$325/hr. and the \$60 filing fee. (Kelso Decl., ¶ 4, Ex. 10.) The Court finds this an unreasonable amount of time spent, given the simplicity of the motion and issues raised. For example, counsel asserts she spent one hour reviewing interrogatory responses on April 14, 2026, another hour reviewing supplemental responses on May 22, 2026, 5.5 hours preparing the motion and separate statement on May 26, 2026, .2 hours driving to Defendant's mailing address to verify that he has a mailbox on May 25, 2026, and 1.5 hours reserving the hearing date and reviewing the case file on May 22, 2026. The time billed for the work done is unreasonable.

Accordingly, Plaintiff's request for sanctions is GRANTED in the amount of \$1,360 for approximately 4.0 hours of work and the requested filing fee.

V. Conclusion

Plaintiff Barbara Carson's Motion to Compel Further Responses to Form Interrogatories is GRANTED with sanctions in the amount of \$1,360 against Defendant. Defendant shall serve full and complete responses to Form Interrogatory Nos. 2.3, 2.4, 2.5, 2.7, and 2.8 without objection within 30 days of this Order. Defendant shall tender payment in full to Plaintiff's counsel within 30 days of this order, subject to extension on mutual agreement of the parties.